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Mishnah Oholot 7

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הַטְּמְאָה בַּכֹּתֶל, וּמְקוֹמָהּ טָפַח עַל טָפַח עַל רוּם טֶפַח, כָּל הָעֲלִיּוֹת שֶׁעַל גַּבָּהּ, אֲפִלּוּ הֵן עֶשֶׂר, טְמֵאוֹת. הָיְתָה עֲלִיָּה אַחַת עַל גַּבֵּי שְׁנֵי בָתִּים, הִיא טְמֵאָה, וְכָל הָעֲלִיּוֹת שֶׁעַל גַּבָּהּ, טְהוֹרוֹת. כֹּתֶל שָׁנִית, טֻמְאָה בוֹקַעַת וְעוֹלָה, בּוֹקַעַת וְיוֹרֶדֶת. נֶפֶשׁ אֲטוּמָה, הַנּוֹגֵעַ בָּהּ מִן הַצְּדָדִין, טָהוֹר, מִפְּנֵי שֶׁטֻּמְאָה בוֹקַעַת וְעוֹלָה, בּוֹקַעַת וְיוֹרֶדֶת. אִם הָיָה מְקוֹם הַטֻּמְאָה טָפַח עַל טָפַח עַל רוּם טֶפַח, הַנּוֹגֵעַ בָּהּ מִכָּל מָקוֹם, טָמֵא, מִפְּנֵי שֶׁהִיא כְּקֶבֶר סָתוּם. סָמַךְ לָהּ סֻכּוֹת, טְמֵאוֹת. רַבִּי יְהוּדָה מְטַהֵר:

If there is uncleanness in a wall, in a space of one cubic handbreadth, all upper stories above it, even if there are ten of them, are unclean. If there was a single upper story [built] over two houses, that one becomes unclean but all upper stories above it remain clean. [In a] beach- wall, uncleanness cleaves upwards and downward. [With regard to] a solid tomb monument, a person who touches it from the side remains clean, since [its] uncleanness cleaves upwards and downwards. But if there was a [free] space of a cubic handbreadth in the place where the uncleanness was, a person touching it anywhere becomes unclean, because it is like a closed grave. If he supported sukkot on [the monument] they become unclean. Rabbi Judah declares them clean.

כָּל שִׁפּוּעֵי אֹהָלִין, כְּאֹהָלִין. אֹהֶל שֶׁהוּא שׁוֹפֵעַ וְיוֹרֵד, וְכָלֶה עַד כְּאֶצְבַּע, טֻמְאָה בְּאֹהֶל, כֵּלִים שֶׁתַּחַת הַשִּׁפּוּעַ, טְמֵאִים. טֻמְאָה תַּחַת הַשִּׁפּוּעַ, כֵּלִים שֶׁבְּאֹהֶל, טְמֵאִין. טֻמְאָה מִתּוֹכוֹ, הַנּוֹגֵעַ בּוֹ מִתּוֹכוֹ, טָמֵא טֻמְאַת שִׁבְעָה. וּמֵאֲחוֹרָיו, טָמֵא טֻמְאַת עֶרֶב. טֻמְאָה מֵאֲחוֹרָיו, הַנּוֹגֵעַ בּוֹ מֵאֲחוֹרָיו, טָמֵא טֻמְאַת שִׁבְעָה. מִתּוֹכוֹ, טָמֵא טֻמְאַת עֶרֶב. כַּחֲצִי זַיִת מִתּוֹכוֹ וְכַחֲצִי זַיִת מֵאֲחוֹרָיו, הַנּוֹגֵעַ בּוֹ, בֵּין מִתּוֹכוֹ בֵּין מֵאֲחוֹרָיו, טָמֵא טֻמְאַת עֶרֶב. מִקְצָתוֹ מְרֻדָּד עַל הָאָרֶץ, טֻמְאָה תַּחְתָּיו אוֹ עַל גַּבָּיו, טֻמְאָה בוֹקַעַת וְעוֹלָה, בּוֹקַעַת וְיוֹרֶדֶת. אֹהֶל שֶׁהוּא נָטוּי בָּעֲלִיָּה, מִקְצָתוֹ מְרֻדָּד עַל

הָאֲרֻבָּה שֶׁבֵּין בַּיִת לָעֲלִיָּה, רַבִּי יוֹסֵי אוֹמֵר, מַצִּיל. רַבִּי שִׁמְעוֹן אוֹמֵר, אֵינוֹ מַצִּיל, עַד שֶׁיְּהֵא נָטוּי כִּנְטִיַּת הָאֹהֶל:

All sloping [parts] of 'tents' are reckoned like 'tents.' A 'tent' [whose sides] sloped downwards and finished off one fingerbreadth [from the ground]: If there is uncleanness in the 'tent', vessels beneath the slope become unclean. If there is uncleanness beneath the slope, vessels in the 'tent' become unclean. If there is uncleanness within, a person who touches [the tent] from the inside acquires a seven [days'] defilement, but from the outside, a defilement [lasting till] evening. If there had been uncleanness outside, a person who touches the 'tent' from the outside acquires a seven [days'] defilement, but from the inside, a defilement [lasting till] evening. If there was [a portion of uncleanness] the size of half an olive [touching it] from inside and half an olive from the outside, a person who touches [the 'tent'] either from within or without acquires a defilement [lasting till] evening. If a part [of the 'tent' side] trailed along the ground, when there is uncleanness beneath or above [this part], the uncleanness cleaves upwards and downwards. [In the case of] a 'tent' erected in an upper story, with a portion [of its side] trailing over the hatch between the house and the upper story: Rabbi Yose says it does protect. Rabbi Shimon says: it does not protect unless it put up in the usual manner of erecting tents.

הַמֵּת בַּבַּיִת וּבוֹ פְּתָחִין הַרְבֵּה, כֻּלָּן טְמֵאִין. נִפְתַּח אֶחָד מֵהֶן, הוּא טָמֵא וְכֻלָּן טְהוֹרִים. חָשַׁב לְהוֹצִיאוֹ בְּאֶחָד מֵהֶן, אוֹ בְחַלּוֹן שֶׁהוּא אַרְבָּעָה עַל אַרְבָּעָה טְפָחִים, הִצִּיל עַל כָּל הַפְּתָחִים. בֵּית שַׁמַּאי אוֹמְרִים, יַחְשֹׁב עַד שֶׁלֹּא יָמוּת הַמֵּת. בֵּית הִלֵּל אוֹמְרִים, אַף מִשֶּׁמֵּת. הָיָה סָתוּם וְנִמְלַךְ לְפָתְחוֹ, בֵּית שַׁמַּאי אוֹמְרִים, כְּשֶׁיִּפְתַּח אַרְבָּעָה טְפָחִים. וּבֵית הִלֵּל אוֹמְרִים, כְּשֶׁיַּתְחִיל. וּמוֹדִים בְּפוֹתֵחַ בַּתְּחִלָּה, שֶׁיִּפְתַּח אַרְבָּעָה טְפָחִים:

If a corpse is in a house in which there are many doors, they all become unclean. If one of them was opened, that one becomes unclean but all the rest remain clean. If he intended to carry out the corpse through one of them or through a window of four hand breadths square, he protects all the other doors. Bet Shammai says: the intention must have been formed before the person died. Bet Hillel say: even after he died. If [a door] was blocked up and it was decided to open it: Bet Shammai says: [it is effective] as soon he opens a [a space] four handbreadths square. Bet Hillel says: as soon as [the process] has begun. They agree, however, that when making an opening for the first time, four handbreadths must be opened up.

הָאִשָּׁה שֶׁהִיא מַקְשָׁה לֵילֵד וְהוֹצִיאוּהָ מִבַּיִת לְבַיִת, הָרִאשׁוֹן טָמֵא בְסָפֵק, וְהַשֵּׁנִי בְּוַדַּאי. אָמַר רַבִּי יְהוּדָה, אֵימָתַי, בִּזְמַן שֶׁהִיא נִטֶּלֶת בַּגַּפַּיִם. אֲבָל אִם הָיְתָה מְהַלֶּכֶת, הָרִאשׁוֹן טָהוֹר, שֶׁמִּשֶּׁנִּפְתַּח הַקֶּבֶר אֵין פְּנַאי לְהַלֵּךְ. אֵין לַנְּפָלִים פְּתִיחַת הַקֶּבֶר, עַד שֶׁיַּעְגִּילוּ רֹאשׁ כְּפִיקָה:

If a woman was having great difficulty giving birth and they carried her out from one house to another, the first house is doubtfully unclean and the second is certainly unclean. Rabbi Judah said: When is this so? When she is carried out [supported] by the armpits, but if she was able to walk, the first house remains clean, for after the "tomb" has been opened there is no possibility of walking, For stillborn children are not [deemed to have] opened the "tomb" until they present a head rounded like a spindle-knob.

יָצָא הָרִאשׁוֹן מֵת וְהַשֵּׁנִי חַי, טָהוֹר. הָרִאשׁוֹן חַי וְהַשֵּׁנִי מֵת, טָמֵא. רַבִּי מֵאִיר אוֹמֵר, בְּשָׁפִיר אֶחָד, טָמֵא. בִּשְׁנֵי שְׁפִירִים, טָהוֹר:

If [at the birth of twins] the first came out dead and the second came out alive, the [live one] is clean. If the first was alive and the second dead, the [live child] is

unclean. Rabbi Meir says: if they were in one sac, [the live child] is unclean, but if there were two sacs, it remains clean.

הָאִשָּׁה שֶׁהִיא מַקְשָׁה לֵילֵד, מְחַתְּכִין אֶת הַוָּלָד בְּמֵעֶיהָ וּמוֹצִיאִין אוֹתוֹ אֵבָרִים אֵבָרִים, מִפְּנֵי שֶׁחַיֶּיהָ קוֹדְמִין לְחַיָּיו. יָצָא רֻבּוֹ, אֵין נוֹגְעִין בּוֹ, שֶׁאֵין דּוֹחִין נֶפֶשׁ מִפְּנֵי נֶפֶשׁ:

If a woman is having trouble giving birth, they cut up the child in her womb and brings it forth limb by limb, because her life comes before the life of [the child]. But if the greater part has come out, one may not touch it, for one may not set aside one person's life for that of another.

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יֵשׁ מְבִיאִין אֶת הַטֻּמְאָה וְחוֹצְצִין, מְבִיאִין אֶת הַטֻּמְאָה וְלֹא חוֹצְצִין, חוֹצְצִין וְלֹא מְבִיאִין, לֹא מְבִיאִין וְלֹא חוֹצְצִין. אֵלּוּ מְבִיאִין וְחוֹצְצִין, הַשִּׁדָּה וְהַתֵּבָה וְהַמִּגְדָּל, כַּוֶּרֶת הַקַּשׁ, כַּוֶּרֶת הַקָּנִים, וּבוֹר סְפִינָה אֲלֶכְסַנְדְּרִית, שֶׁיֵּשׁ לָהֶן שׁוּלַיִם וְהֵן מַחֲזִיקִים אַרְבָּעִים סְאָה בְלַח, שֶׁהֵם כּוֹרִים בְּיָבֵשׁ. וִירִיעָה, וּסְקוֹרְטְיָא, וּקְטָבְלְיָא, וְסָדִין, וּמַפָּץ, וּמַחֲצֶלֶת, שֶׁהֵן עֲשׂוּיִין אֹהָלִים, וְעֵדֶר בְּהֵמָה טְמֵאָה וּטְהוֹרָה, וּמְכוֹנוֹת חַיָּה וָעוֹף, וְהָעוֹף שֶׁשָּׁכַן, וְהָעוֹשֶׂה מָקוֹם לִבְנָה בַּשִּׁבָּלִים, הָאֵירוּס וְהַקִּסּוֹם, וְיֶרֶק חֲמוֹר, וּדְלַעַת יְוָנִית, וְאֻכָלִים טְהוֹרִים. רַבִּי יוֹחָנָן בֶּן נוּרִי לֹא הָיָה מוֹדֶה בְּאֻכָלִים טְהוֹרִין, חוּץ מִן הָעִגּוּל שֶׁל דְּבֵלָה:

Some things bring forth uncleanness and [also] a protect [against it]; [Some things] bring forth uncleanness but do not protect against it; [Some things] protect but do not bring forth; [Some things] do not bring forth nor do they protect. The following bring forth and protect against [impurity]: A chest, a box, a cupboard, a beehive of straw, a beehive of reeds, or the water-tank of an Alexandrian ship, such

of which [objects] have [flat] bottoms and can contain [at least] forty seahs liquid measure or two kors dry measure. [Also] a curtain, a leather apron, a leather bedspread, a sheet, a matting underlay or a mat when made into tents. A herd of cattle, unclean or clean, packs of wild animals or birds, a resting bird, a [shady] place that [a woman] makes for her son among the ears of corn; The iris, the ivy, squirting cucumber, Greek gourds and clean foodstuffs. Rabbi Yohanan ben Nuri did not agree with regard to clean foodstuffs except in the case of a cake of dried figs.

הַזִּיזִין, וְהַגִּזְרִיּוֹת, וְהַשּׁוֹבָכוֹת, וְהַשְּׁקִיפִים, וְהַסְּלָעִים, וְהַגְּהָרִים, וְהַשְּׁנָנִים, וְהַסְּכָכוֹת, וְהַפְּרָעוֹת, שֶׁהֵן יְכוֹלִים לְקַבֵּל מַעֲזִיבָה רַכָּה, דִּבְרֵי רַבִּי מֵאִיר. וַחֲכָמִים אוֹמְרִים, מַעֲזִיבָה בֵּינוֹנִית. אֵלּוּ הֵן הַסְּכָכוֹת, אִילָן שֶׁהוּא מֵסֵךְ עַל הָאָרֶץ. וְהַפְּרָעוֹת, הַיּוֹצְאוֹת מִן הַגָּדֵר:

Projections from a wall, balconies, dovecotes, crevices and crags, grottoes, [overhanging] pinnacles, interlaced boughs and protruding stones as long as they are cable of sustaining thin plasterwork, the words of Rabbi Meir. But the sages say a medium plasterwork. What are interlaced boughs? A tree which casts shade over the ground. Protruding stones? [Stones] that project from a wall.

אֵלּוּ מְבִיאִין וְלֹא חוֹצְצִין. הַשִּׁדָּה, וְהַתֵּבָה, וְהַמִּגְדָּל, כַּוֶּרֶת הַקַּשׁ, כַּוֶּרֶת הַקָּנִים, וּבוֹר סְפִינָה אֲלֶכְסַנְדְּרִית, שֶׁאֵין לָהֶם שׁוּלַיִם וְאֵינָן מַחֲזִיקִים אַרְבָּעִים סְאָה בְּלַח, שֶׁהֵם כּוֹרִים בְּיָבֵשׁ. וִירִיעָה, וּסְקוֹרְטְיָא, וּקְטָבְלְיָא, וְסָדִין, וּמַפָּץ, וּמַחֲצֶלֶת, שֶׁאֵין עֲשׂוּיִין אֹהָלִים, וּבְהֵמָה וְחַיָּה שֶׁמֵּתוּ, וְאָכָלִים טְמֵאִים. מוּסָף עֲלֵיהֶם, הָרֵחַיִם שֶׁל אָדָם:

The following bring [impurity] but do not protect against it: A chest, a box, a cupboard, a beehive of straw, a beehive of reeds, or the water tank of an Alexandrian ship, such of which [objects] have [flat] bottoms but cannot contain forty se'ahs of

liquid measure or two kors dry measure. A curtain, a leather apron, a leather undercover, a sheet, a matting underlay or a mat when not made into tents. Cattle or wild animals when they are dead, and foodstuffs that are [liable to become] unclean. In addition to these, a human-powered mill.

אֵלּוּ חוֹצְצִים וְלֹא מְבִיאִין. מַסֶּכֶת פְּרוּסָה, וַחֲבִילֵי הַמִּטָּה, וְהַמִּשְׁפָּלוֹת וְהַסְּרִיגוֹת שֶׁבַּחֲלוֹנוֹת:

The following protect [against impurity] but do not bring it: A loom [with the woof] spread out, the ropes of a bed, waste baskets, and window-lattices.

אֵלּוּ לֹא מְבִיאִין וְלֹא חוֹצְצִין. הַזְּרָעִים וְהַיָּרָקוֹת הַמְחֻבָּרִים לַקַּרְקַע, חוּץ מִן הַיָּרָקוֹת שֶׁמָּנוּ, וְכִפַּת הַבָּרָד, וְהַשֶּׁלֶג, וְהַכְּפוֹר, וְהַגְּלִיד, וְהַמֶּלַח, וְהַדּוֹלֵג מִמָּקוֹם לְמָקוֹם, וְהַקּוֹפֵץ מִמָּקוֹם לְמָקוֹם, וְהָעוֹף הַפּוֹרֵחַ, וְטַלִּית הַמְנַפְנֶפֶת, וּסְפִינָה שֶׁהִיא שָׂטָה עַל פְּנֵי הַמָּיִם. קָשַׁר אֶת הַסְּפִינָה בְּדָבָר שֶׁהוּא יָכוֹל לְהַעֲמִידָהּ, כְּבַשׁ אֶת הָאֶבֶן עַל גַּבֵּי הַטַּלִּית, מְבִיאָה אֶת הַטֻּמְאָה. רַבִּי יוֹסֵי אוֹמֵר, הַבַּיִת שֶׁבַּסְּפִינָה אֵינוֹ מֵבִיא אֶת הַטֻּמְאָה:

The following neither bring [impurity] nor protect against it:Seeds, plants [still] attached to the ground, except for the plants mentioned above, A lump of hail, snow, frost, ice and salt. [Anything] that hops from one place to another, or leaps from one place to another, a flying bird. A loosely-flapping garment, or a ship floating [freely] on the water. If the ship were tied with something that can keep it steady, or a stone were [placed so as] to hold down the garment, it can bring uncleanness. Rabbi Yose says: a house on a ship cannot bring uncleanness.

שְׁתֵּי חֲבִיּוֹת וּבָהֶן כִּשְׁנֵי חֲצָיֵי זֵיתִים, מֻקָּפוֹת צָמִיד פָּתִיל וּמֻנָּחוֹת בְּתוֹךְ הַבַּיִת, הֵן טְהוֹרוֹת, וְהַבַּיִת טָמֵא. נִפְתְּחָה אַחַת מֵהֶן, הִיא וְהַבַּיִת טְמֵאִים וַחֲבֶרְתָּהּ טְהוֹרָה. וְכֵן שְׁנֵי חֲדָרִים שֶׁהֵן פְּתוּחִין לַבָּיִת:

Two [earthenware] jars in which there are two pieces of corpse the size of half an olive, sealed with tightly fitting lids, lying in a house, they remain clean, but the house becomes unclean. If one of them was opened, that [jar] and the house become unclean, but the other remains clean. And similarly with two rooms that open into a house.